

1 ENGROSSED HOUSE AMENDMENT
TO
2 ENGROSSED SENATE BILL NO. 625 By: Howard of the Senate
3 and
4 Harris of the House
5
6
7 An Act relating to the Oklahoma Discovery Code;
8 amending 12 O.S. 2021, Section 3226, which relates to
9 general provisions governing discovery; requiring
10 production of commercial litigation funding agreement
11 upon request; prohibiting admissibility of certain
12 information as evidence; requiring certain
13 certification with production of agreement; providing
14 exception; defining terms; providing for
15 codification; and providing an effective date.
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18 AMENDMENT NO. 1. Strike the title, enacting clause, and entire bill
19 and insert:
20
21 "An Act relating to dissolution of marriage; amending
22 43 O.S. 2021, Section 110, as amended by Section 3,
23 Chapter 189, O.S.L. 2024 (43 O.S. Supp. 2025, Section
24 110), which relates to automatic temporary injunction
and temporary orders; modifying time frame for
setting hearing for certain temporary orders; and
declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 110, as
amended by Section 3, Chapter 189, O.S.L. 2024 (43 O.S. Supp. 2025,
Section 110), is amended to read as follows:

1 Section 110. A. 1. Except as otherwise provided by this
2 subsection, upon the filing of a petition for dissolution of
3 marriage, annulment of a marriage or legal separation by the
4 petitioner and upon personal service of the petition and summons on
5 the respondent, or upon waiver and acceptance of service by the
6 respondent, an automatic temporary injunction shall be in effect
7 against both parties pursuant to the provisions of this section:

8 a. restraining the parties from transferring,
9 encumbering, concealing, or in any way disposing of,
10 without the written consent of the other party or an
11 order of the court, any marital property, except in
12 the usual course of business, for the purpose of
13 retaining an attorney for the case or for the
14 necessities of life and requiring each party to notify
15 the other party of any proposed extraordinary
16 expenditures and to account to the court for all
17 extraordinary expenditures made after the injunction
18 is in effect,

19 b. restraining the parties from:

20 (1) intentionally or knowingly damaging or destroying
21 the tangible property of the parties, or of
22 either of them, specifically including, but not
23 limited to, any electronically stored materials,
24 electronic communications, social network data,

1 financial records, and any document that
2 represents or embodies anything of value,

3 (2) making any withdrawal for any purpose from any
4 retirement, profit-sharing, pension, death, or
5 other employee benefit plan or employee savings
6 plan or from any individual retirement account or
7 Keogh account,

8 (3) withdrawing or borrowing in any manner all or any
9 part of the cash surrender value of any life
10 insurance policies on either party or their
11 children,

12 (4) changing or in any manner altering the
13 beneficiary designation on any life insurance
14 policies on the life of either party or any of
15 their children,

16 (5) canceling, altering, or in any manner affecting
17 any casualty, automobile, or health insurance
18 policies insuring the parties' property or
19 persons,

20 (6) opening or diverting mail addressed to the other
21 party, and

22 (7) signing or endorsing the other party's name on
23 any negotiable instrument, check, or draft, such
24 as tax refunds, insurance payments, and

1 dividends, or attempting to negotiate any
2 negotiable instruments payable to either party
3 without the personal signature of the other
4 party,

5 c. requiring the parties to maintain all presently
6 existing health, property, life and other insurance
7 which the individual is presently carrying on any
8 member of this family unit, and to cooperate as
9 necessary in the filing and processing of claims. Any
10 employer-provided health insurance currently in
11 existence shall remain in full force and effect for
12 all family members,

13 d. enjoining both parties from molesting or disturbing
14 the peace of the other party or of the children to the
15 marriage,

16 e. restraining both parties from disrupting or
17 withdrawing their children from an educational
18 facility and programs where the children historically
19 have been enrolled, or day care,

20 f. restraining both parties from hiding or secreting
21 their children from the other party,

22 g. restraining both parties from removing the minor
23 children of the parties, if any, beyond the
24 jurisdiction of the State of Oklahoma, acting directly

1 or in concert with others, except for vacations of two
2 (2) weeks or less duration, without the prior written
3 consent of the other party, which shall not be
4 unreasonably withheld, and

5 h. requiring, unless otherwise agreed upon by the parties
6 in writing, the delivery by each party to the other
7 within thirty (30) days from the earlier of either the
8 date of service of the summons or the filing of an
9 initial pleading by the respondent, the following
10 documents:

11 (1) the federal and state income tax returns of each
12 party for the past two (2) years and any
13 nonpublic, limited partnership and privately held
14 corporate returns for any entity in which either
15 party has an interest, together with all
16 supporting documentation for the tax returns,
17 including but not limited to W-2 forms, 1099
18 forms, K-1 forms, Schedule C and Schedule E. If
19 a return is not completed at the time of
20 disclosure, the parties shall provide the
21 documents necessary to prepare the tax return of
22 the party, to include W-2 forms, 1099 forms, K-1
23 forms, copies of extension requests and estimated
24 tax payments,

- 1 (2) two (2) months of the most recent pay stubs from
2 each employer for whom the party worked,
3 (3) statements for the past six (6) months for all
4 bank accounts held in the name of either party
5 individually or jointly, or in the name of
6 another person for the benefit of either party,
7 or held by either party for the benefit of the
8 minor child or children of the parties,
9 (4) documentation regarding the cost and nature of
10 available health insurance coverage for the
11 benefit of either party or the minor child or
12 children of the parties,
13 (5) documentation regarding the cost and nature of
14 employment or educationally related child care
15 expenses incurred for the benefit of the minor
16 child or children of the parties, and
17 (6) documentation regarding all debts in the name of
18 either party individually or jointly, showing the
19 most recent balance due and payment terms.

20 2. If either party is not in possession of a document required
21 pursuant to subparagraph h of paragraph 1 of this subsection or has
22 not been able to obtain the document in a timely fashion, the party
23 shall state in verified writing, under the penalty of perjury, the
24 specific document which is not available, the reasons the document

1 is not available, and what efforts have been made to obtain the
2 document. As more information becomes available, there is a
3 continuing duty to supplement the disclosures.

4 3. Nothing in this subsection shall prohibit a party from
5 conducting further discovery pursuant to the Oklahoma Discovery
6 Code.

7 4. a. The provisions of the automatic temporary injunction
8 shall be printed as an attachment to the summons and
9 the petition and entitled "Automatic Temporary
10 Injunction Notice".

11 b. The automatic temporary injunction notice shall
12 contain a provision which will allow the parties to
13 waive the automatic temporary injunction. In
14 addition, the provision must state that unless both
15 parties have agreed and have signed their names in the
16 space provided, that the automatic temporary
17 injunction will be effective. Along with the waiver
18 provision, the notice shall contain a check box and
19 space available for the signatures of the parties.

20 5. The automatic temporary injunction shall become an order of
21 the court upon fulfillment of the requirements of paragraph 1 of
22 this subsection unless and until:

23 a. the automatic temporary injunction is waived by the
24 parties. Both parties must indicate on the automatic

1 temporary injunction notice in the space provided that
2 the parties have both agreed to waive the automatic
3 temporary injunction. Each party must sign his or her
4 own name on the notice in the space provided, or

- 5 b. a party, no later than three (3) days after service on
6 the party, files an objection to the injunction and
7 requests a hearing. Provided, the automatic temporary
8 injunction shall remain in effect until the hearing
9 and a judge orders the injunction removed.

10 6. The automatic temporary injunction shall be dissolved upon
11 the granting of the dissolution of marriage, final order of legal
12 separation or other final order.

13 7. Nothing in this subsection shall preclude either party from
14 applying to the court for further temporary orders, pursuant to this
15 section, an expanded automatic temporary injunction, or modification
16 or revocation thereto.

- 17 8. a. With regard to an automatic temporary injunction, when
18 a petition for dissolution of marriage, annulment of a
19 marriage, or a legal separation is filed and served, a
20 peace officer shall use every reasonable means to
21 enforce the injunction which enjoins both parties from
22 molesting or disturbing the peace of the other party
23 or the children of the marriage against a petitioner
24 or respondent, whenever:

1 (1) there is exhibited by a respondent or by the
2 petitioner to the peace officer a copy of the
3 petition or summons, with an attached Temporary
4 Injunction Notice, duly filed and issued pursuant
5 to this section, together with a certified copy
6 of the affidavit of service of process or a
7 certified copy of the waiver and acceptance of
8 service, and

9 (2) the peace officer has cause to believe that a
10 violation of the automatic temporary injunction
11 has occurred.

12 b. A peace officer shall not be held civilly or
13 criminally liable for his or her action pursuant to
14 this paragraph if his or her action is in good faith
15 and without malice.

16 B. After a petition has been filed in an action for dissolution
17 of marriage or legal separation either party may request the court
18 to issue:

19 1. A temporary order:

- 20 a. regarding child custody, support or visitation,
- 21 b. regarding spousal maintenance,
- 22 c. regarding payment of debt,
- 23 d. regarding possession of property,
- 24 e. regarding attorney fees, and

1 f. providing other injunctive relief proper in the
2 circumstances.

3 All applications for temporary orders shall set forth the
4 factual basis for the application and shall be verified by the party
5 seeking relief. The application and a notice of hearing shall be
6 served on the other party in any manner provided for in the Rules of
7 Civil Procedure;

8 2. A temporary order. If domestic abuse is not alleged, when
9 setting a hearing to enter temporary orders, the court shall conduct
10 a substantive hearing and issue a ruling on custody, visitation,
11 child support, and other ancillary matters, including property. The
12 court shall schedule the hearing to take place within thirty (30)
13 days from the date that the application for temporary orders is
14 presented to the court for scheduling by the moving party, unless
15 the parties agree in writing to waive this requirement, and said
16 agreement is memorialized by an order of the court. The moving
17 party shall provide at least five (5) days' notice of hearing to the
18 nonmoving party;

19 3. A temporary order. In an application for a temporary order,
20 any party alleging acts of domestic abuse, as defined by Section 109
21 of this title, against the other party, or the minor child or
22 children at issue and either of the following are present:

23 a. the moving party has been granted a temporary or
24 permanent order of protection against the other party

1 for domestic abuse committed against the moving party
2 or the minor child or children at issue, or
3 b. the party against whom domestic violence has been
4 alleged has been charged in any criminal proceeding,
5 within the past five (5) years, with an act of
6 domestic abuse wherein the moving party or a child of
7 the party alleging domestic abuse is the victim,
8 the court shall set a hearing upon application within ten (10) days
9 ~~of filing~~ from the date that the application for a temporary order
10 is presented to the court for scheduling by the moving party, with
11 the moving party providing five (5) days' notice of hearing to the
12 nonmoving party unless waived by both parties, and memorialized by
13 an order of the court. The court shall conduct a substantive
14 hearing and issue a ruling on custody, visitation, child support,
15 and other ancillary matters, including property. The requesting
16 party shall attach a certified copy of the emergency protective
17 order, probable cause affidavit, or charging information, if
18 available, to the temporary orders application; and

19 4. A temporary restraining order. If the court finds on the
20 basis of a verified application and testimony of witnesses that
21 irreparable harm will result to the moving party, or a child of a
22 party if no order is issued before the adverse party or attorney for
23 the adverse party can be heard in opposition, the court may issue a
24 temporary restraining order which shall become immediately effective

1 and enforceable without requiring notice and opportunity to be heard
2 to the other party. Provided, for the purposes of this section, no
3 minor child or children temporarily residing in a licensed,
4 certified domestic violence shelter in the state shall be removed by
5 an ex parte order. If a temporary restraining order is issued
6 pursuant to this paragraph, the motion for a temporary order shall
7 be set within ten (10) days, but such hearing shall not be heard
8 unless five (5) days' notice of hearing is given to the other party.

9 C. Any temporary orders and the automatic temporary injunction,
10 or specific terms thereof, may be vacated or modified prior to or in
11 conjunction with a final decree on a showing by either party of
12 facts necessary for vacation or modification. Temporary orders and
13 the automatic temporary injunction terminate when the final judgment
14 on all issues, except attorney fees and costs, is rendered or when
15 the action is dismissed. The court may reserve jurisdiction to rule
16 on an application for a contempt citation for a violation of a
17 temporary order or the automatic temporary injunction which is filed
18 any time prior to the time the temporary order or injunction
19 terminates.

20 D. Upon granting a decree of dissolution of marriage, annulment
21 of a marriage, or legal separation, the court may require either
22 party to pay such reasonable expenses of the other as may be just
23 and proper under the circumstances.

1 E. The court may in its discretion make additional orders
2 relative to the expenses of any such subsequent actions, including
3 but not limited to writs of habeas corpus, brought by the parties or
4 their attorneys, for the enforcement or modification of any
5 interlocutory or final orders in the dissolution of marriage action
6 made for the benefit of either party or their respective attorneys.

7 SECTION 2. It being immediately necessary for the preservation
8 of the public peace, health or safety, an emergency is hereby
9 declared to exist, by reason whereof this act shall take effect and
10 be in full force from and after its passage and approval."

11 Passed the House of Representatives the 5th day of May, 2026.
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14 _____
Presiding Officer of the House of
Representatives
15

16 Passed the Senate the ____ day of _____, 2026.
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19 _____
Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 625

By: Howard of the Senate

3 and

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6 An Act relating to the Oklahoma Discovery Code;
7 amending 12 O.S. 2021, Section 3226, which relates to
8 general provisions governing discovery; requiring
9 production of commercial litigation funding agreement
10 upon request; prohibiting admissibility of certain
11 information as evidence; requiring certain
12 certification with production of agreement; providing
exception; defining terms; providing for
codification; and providing an effective date.

13 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

14 SECTION 3. AMENDATORY 12 O.S. 2021, Section 3226, is
15 amended to read as follows:

16 Section 3226. A. DISCOVERY METHODS; INITIAL DISCLOSURES.

17 1. DISCOVERY METHODS. Parties may obtain discovery regarding
18 any matter that is relevant to any party's claim or defense by one
19 or more of the following methods: Depositions upon oral examination
20 or written questions; written interrogatories; production of
21 documents or things or permission to enter upon land or other
22 property, for inspection and other purposes; physical and mental
23 examinations; requests for admission; authorizations for release of
24 records; and otherwise by court order upon showing of good cause.

1 Except as provided in this section or unless the court orders
2 otherwise under this section, the frequency of use of these methods
3 is not limited.

4 2. INITIAL DISCLOSURES.

5 a. Except in categories of proceedings specified in
6 subparagraph b of this paragraph, or to the extent
7 otherwise stipulated or directed by order, a party,
8 without awaiting a discovery request, shall provide to
9 other parties a computation of any category of damages
10 claimed by the disclosing party, making available for
11 inspection and copying the documents or other
12 evidentiary material, not privileged or protected from
13 disclosure, on which such computation is based,
14 including materials bearing on the nature and extent
15 of injuries suffered. Subject to subsection B of this
16 section, in any action in which physical or mental
17 injury is claimed, the party making the claim shall
18 provide to the other parties a release or
19 authorization allowing the parties to obtain relevant
20 medical records and bills, and, when relevant, a
21 release or authorization for employment and scholastic
22 records.

1 b. The following categories of proceedings are exempt
2 from initial disclosure under subparagraph a of this
3 paragraph:

- 4 (1) an action for review of an administrative record,
- 5 (2) a petition for habeas corpus or other proceeding
6 to challenge a criminal conviction or sentence,
- 7 (3) an action brought without counsel by a person in
8 custody of the United States, a state, or a state
9 subdivision,
- 10 (4) an action to enforce or quash an administrative
11 summons or subpoena,
- 12 (5) an action by the United States to recover benefit
13 payments,
- 14 (6) an action by the United States to collect on a
15 student loan guaranteed by the United States,
- 16 (7) a proceeding ancillary to proceedings in other
17 courts, and
- 18 (8) an action to enforce an arbitration award.

19 c. Disclosures required under this paragraph shall be
20 made at or within sixty (60) days after service unless
21 a different time is set by stipulation or court order,
22 or unless a party objects that initial disclosures are
23 not appropriate in the circumstances of the action and
24 states the objection in a motion filed with the court.

1 In ruling on the objection, the court shall determine
2 what disclosures, if any, are to be made and set the
3 time for disclosure. A party shall make its initial
4 disclosures based on the information then readily
5 available to it and is not excused from making its
6 disclosures because it has not fully completed its
7 investigation of the case or because it challenges the
8 sufficiency of another party's disclosures or because
9 another party has not made its disclosures.

10 B. DISCOVERY SCOPE AND LIMITS. Unless otherwise limited by
11 order of the court in accordance with the Oklahoma Discovery Code,
12 the scope of discovery is as follows:

13 1. IN GENERAL.

14 a. Parties may obtain discovery regarding any matter, not
15 privileged, which is relevant to any party's claim or
16 defense, reasonably calculated to lead to the
17 discovery of admissible evidence and proportional to
18 the needs of the case, considering the importance of
19 the issues at stake in the action, the amount in
20 controversy, the parties' relative access to relevant
21 information, the parties' resources, the importance of
22 the discovery in resolving the issues, and whether the
23 burden or expense of the proposed discovery outweighs
24 its likely benefit. Information within this scope of

1 discovery need not be admissible in evidence to be
2 discoverable.

3 b. A party shall produce upon request pursuant to Section
4 3234 of this title, any insurance agreement under
5 which any person carrying on an insurance business may
6 be liable to satisfy part or all of a judgment which
7 may be entered in the action or to indemnify or
8 reimburse for payments made to satisfy the judgment.
9 Information concerning the insurance agreement is not
10 by reason of disclosure admissible in evidence at
11 trial. For purposes of this section, an application
12 for insurance shall not be treated as a part of an
13 insurance agreement.

14 c. A party shall produce upon request, pursuant to
15 Section 3234 of this title, any commercial litigation
16 funding agreement as defined in Section 2 of this act.
17 Information related to the commercial litigation
18 funding agreement is not by reason of disclosure
19 admissible as evidence at trial. Production of a
20 commercial litigation funding agreement shall include
21 a certification by sworn affidavit by the producing
22 party as to whether any funds encumbered by the terms
23 of the agreement have been or will be sourced from a
24 foreign state or agency or instrumentality of a

1 foreign state as defined in 28 U.S.C., Section 1603,
2 as amended. Certification that discloses that a
3 foreign state or agency or instrumentality of a
4 foreign state is such a source shall include the
5 identity of the foreign state, agency, or
6 instrumentality that is the source of the funds. Such
7 certification shall be supplemented or corrected by
8 the producing party within thirty (30) days in the
9 event the certification becomes incomplete or
10 inaccurate in a material respect. A consumer
11 litigation funding agreement as defined in Section 3-
12 801 of Title 14A of the Oklahoma Statutes shall be
13 exempt from the provisions of this subparagraph.

14 d. If a commercial litigation funding agreement as
15 defined in Section 2 of this act, has been requested,
16 a party shall also produce, upon request pursuant to
17 Sections 3234 and 3236 of this title, a certification
18 by sworn affidavit by the producing party that
19 identifies whether the party is an entity controlled
20 by a foreign adversary. The certification shall also
21 include an admission or denial as to whether the party
22 is under the control or direction of an entity
23 controlled by a foreign adversary and whether the
24 party will allow access to any documents or

1 information arising in the litigation not generally
2 available to the public to an entity controlled by a
3 foreign adversary. In the event that the producing
4 party admits that an entity controlled by a foreign
5 adversary may access any documents or information
6 arising in the litigation not generally available to
7 the public, the party shall specify the persons who
8 will have access to such documents or information.
9 Further, if the party receives funding pursuant to a
10 commercial litigation funding agreement as defined in
11 Section 2 of this act, the certification shall include
12 a statement that the funding was not sourced from an
13 entity controlled by a foreign adversary.

14 2. LIMITATIONS ON FREQUENCY AND EXTENT.

- 15 a. By order, the court may alter the limits on the length
16 of depositions under Section 3230 of this title, on
17 the number of interrogatories under Section 3233 of
18 this title, on the number of requests to produce under
19 Section 3234 of this title, or on the number of
20 requests for admission under Section 3236 of this
21 title.
- 22 b. A party is not required to provide discovery of
23 electronically stored information from sources that
24 the party identifies as not reasonably accessible

1 because of undue burden or cost. On motion to compel
2 discovery or for a protective order, the party from
3 whom discovery is sought must show that the
4 information is not reasonably accessible because of
5 undue burden or cost. If that showing is made, the
6 court may order discovery from such sources if the
7 requesting party shows good cause, considering the
8 limitations of subparagraph c of this paragraph. The
9 court may specify conditions for the discovery.

10 c. On motion or on its own, the court shall limit the
11 frequency or extent of discovery otherwise allowed if
12 it determines that:

13 (1) the discovery sought is unreasonably cumulative
14 or duplicative, or can be obtained from some
15 other source that is more convenient, less
16 burdensome, or less expensive,

17 (2) the party seeking discovery has had ample
18 opportunity to obtain the information by
19 discovery in the action, or

20 (3) the proposed discovery is outside the scope
21 permitted by subparagraph a of paragraph 1 of
22 this subsection.

23 d. If an officer, director or managing agent of a
24 corporation or a government official is served with

1 notice of a deposition or subpoena regarding a matter
2 about which he or she has no knowledge, he or she may
3 submit at a reasonable time prior to the date of the
4 deposition an affidavit to the noticing party so
5 stating and identifying a person within the
6 corporation or government entity who has knowledge of
7 the subject matter involved in the pending action.
8 Notwithstanding such affidavit, the noticing party may
9 proceed with the deposition, subject to the noticed
10 witness's right to seek a protective order.

11 3. TRIAL PREPARATION: MATERIALS.

12 a. Unless as provided by paragraph 4 of this subsection,
13 a party may not discover documents and tangible things
14 that are prepared in anticipation of litigation or for
15 trial by or for another party or its representative,
16 including the other party's attorney, consultant,
17 surety, indemnitor, insurer or agent. Subject to
18 paragraph 4 of this subsection, such materials may be
19 discovered if:

- 20 (1) they are otherwise discoverable under paragraph 1
21 of this subsection, and
22 (2) the party shows that it has substantial need for
23 the materials to prepare its case and cannot,
24

1 without undue hardship, obtain their substantial
2 equivalent by other means.

3 b. If the court orders discovery of such materials, the
4 court shall protect against disclosure of the mental
5 impressions, conclusions, opinions or legal theories
6 of a party's attorney or other representative
7 concerning the litigation.

8 c. A party or other person may, upon request and without
9 the required showing, obtain the person's own previous
10 statement about the action or its subject matter. If
11 the request is refused, the person may move for a
12 court order, and the provisions of paragraph 4 of
13 subsection A of Section 3237 of this title apply to
14 the award of expenses. A previous statement is
15 either:

16 (1) a written statement that the person has signed or
17 otherwise adopted or approved, or

18 (2) a contemporaneous stenographic, mechanical,
19 electrical, or other recording, or a
20 transcription thereof, which recites
21 substantially verbatim the person's oral
22 statement.

23 4. TRIAL PREPARATION: EXPERTS.
24

1 a. Discovery of facts known and opinions held by experts,
2 otherwise discoverable under the provisions of
3 paragraph 1 of this subsection and acquired or
4 developed in anticipation of litigation or for trial,
5 may be obtained only as follows:

6 (1) a party may, through interrogatories, require any
7 other party to identify each person whom that
8 other party expects to call as an expert witness
9 at trial and give the address at which that
10 expert witness may be located,

11 (2) after disclosure of the names and addresses of
12 the expert witnesses, the other party expects to
13 call as witnesses, the party, who has requested
14 disclosure, may depose any such expert witnesses
15 subject to scope of this section. Prior to
16 taking the deposition the party must give notice
17 as required in subsections A and C of Section
18 3230 of this title, and

19 (3) in addition to taking the depositions of expert
20 witnesses the party may, through interrogatories,
21 require the party who expects to call the expert
22 witnesses to state the subject matter on which
23 each expert witness is expected to testify; the
24 substance of the facts and opinions to which the

1 expert is expected to testify and a summary of
2 the grounds for each opinion; the qualifications
3 of each expert witness, including a list of all
4 publications authored by the expert witness
5 within the preceding ten (10) years; the
6 compensation to be paid to the expert witness for
7 the testimony and preparation for the testimony;
8 and a listing of any other cases in which the
9 expert witness has testified as an expert at
10 trial or by deposition within the preceding four
11 (4) years. An interrogatory seeking the
12 information specified above shall be treated as a
13 single interrogatory for purposes of the
14 limitation on the number of interrogatories in
15 Section 3233 of this title.

- 16 b. The protection provided by paragraph 3 of this
17 subsection extends to communications between the
18 party's attorney and any expert witness retained or
19 specially employed to provide expert testimony in the
20 case or whose duties as the party's employee regularly
21 involve giving expert testimony, except to the extent
22 that the communications:
- 23 (1) relate to compensation for the expert's study or
24 testimony,

1 (2) identify facts or data that the party's attorney
2 provided and that the expert considered in
3 forming the opinions to be expressed, or

4 (3) identify assumptions that the party's attorney
5 provided and that the expert relied upon in
6 forming the opinions to be expressed.

7 c. A party may not, by interrogatories or deposition,
8 discover facts known or opinions held by an expert who
9 has been retained or specially employed by another
10 party in anticipation of litigation or to prepare for
11 trial and who is not expected to be called as a
12 witness at trial, except as provided in Section 3235
13 of this title or upon a showing of exceptional
14 circumstances under which it is impracticable for the
15 party to obtain facts or opinions on the same subject
16 by other means.

17 d. Unless manifest injustice would result:

18 (1) the court shall require that the party seeking
19 discovery pay the expert a reasonable fee for
20 time spent in responding to discovery under
21 division (2) of subparagraph a of this paragraph
22 and subparagraph c of this paragraph, and
23 (2) the court shall require that the party seeking
24 discovery with respect to discovery obtained

1 under subparagraph c of this paragraph, pay the
2 other party a fair portion of the fees and
3 expenses reasonably incurred by the latter party
4 in obtaining facts and opinions from the expert.

5 5. CLAIMS OF PRIVILEGE OR PROTECTION OF TRIAL PREPARATION
6 MATERIALS.

- 7 a. When a party withholds information otherwise
8 discoverable under the Oklahoma Discovery Code by
9 claiming that it is privileged or subject to
10 protection as trial preparation material, the party
11 shall make the claim expressly and shall describe the
12 nature of the documents, communications, or things not
13 produced or disclosed in a manner that, without
14 revealing information itself privileged or protected,
15 will enable other parties to assess the applicability
16 of the privilege or protection.
- 17 b. If information produced in discovery is subject to a
18 claim of privilege or of protection as trial
19 preparation material, the party making the claim may
20 notify any party that received the information of the
21 claim and the basis for it. After being notified, a
22 party shall promptly return, sequester, or destroy the
23 specified information and any copies the party has;
24 shall not use or disclose the information until the

1 claim is resolved; shall take reasonable steps to
2 retrieve the information if the party has disclosed it
3 before being notified; and may promptly present the
4 information to the court under seal for a
5 determination of the claim. The producing party shall
6 preserve the information until the claim is resolved.
7 This mechanism is procedural only and does not alter
8 the standards governing whether the information is
9 privileged or subject to protection as trial
10 preparation material or whether such privilege or
11 protection has been waived.

12 C. PROTECTIVE ORDERS.

13 1. Upon motion by a party or by the person from whom discovery
14 is sought, accompanied by a certification that the movant has in
15 good faith conferred or attempted to confer, either in person or by
16 telephone, with other affected parties in an effort to resolve the
17 dispute without court action, and for good cause shown, the court in
18 which the action is pending or on matters relating to a deposition,
19 the district court in the county where the deposition is to be taken
20 may enter any order which justice requires to protect a party or
21 person from annoyance, harassment, embarrassment, oppression or
22 undue delay, burden or expense, including one or more of the
23 following:

24 a. that the discovery not be had,

- b. that the discovery may be had only on specified terms and conditions, including a designation of the time, place or the allocation of expenses,
- c. that the discovery may be had only by a method of discovery other than that selected by the party seeking discovery,
- d. that certain matters not be inquired into, or that the scope of the disclosure or discovery be limited to certain matters,
- e. that discovery be conducted with no one present except persons designated by the court,
- f. that a deposition after being sealed be opened only by order of the court,
- g. that a trade secret or other confidential research, development or commercial information not be disclosed or be disclosed only in a designated way, and
- h. that the parties simultaneously file specified documents or information enclosed in sealed envelopes to be opened as directed by the court.

2. If the motion for a protective order is denied in whole or in part, the court may, on such terms and conditions as are just, order that any party or person provide or permit discovery. The provisions of paragraph 4 of subsection A of Section 3237 of this title apply to the award of expenses incurred in relation to the

1 motion. Any protective order of the court which has the effect of
2 removing any material obtained by discovery from the public record
3 shall contain the following:

- 4 a. a statement that the court has determined it is
5 necessary in the interests of justice to remove the
6 material from the public record,
- 7 b. specific identification of the material which is to be
8 removed or withdrawn from the public record, or which
9 is to be filed but not placed in the public record,
10 and
- 11 c. a requirement that any party obtaining a protective
12 order place the protected material in a sealed manila
13 envelope clearly marked with the caption and case
14 number and is clearly marked with the word
15 "CONFIDENTIAL", and stating the date the order was
16 entered and the name of the judge entering the order.
17 This requirement may also be satisfied by requiring
18 the party to file the documents pursuant to the
19 procedure for electronically filing sealed or
20 confidential documents approved for electronic filing
21 in the courts of this state.

22 3. No protective order entered after the filing and
23 microfilming of documents of any kind shall be construed to require
24 the microfilm record of such filing to be amended in any fashion.

1 4. The party or counsel which has received the protective order
2 shall be responsible for promptly presenting the order to
3 appropriate court clerk personnel for appropriate action.

4 5. All documents produced or testimony given under a protective
5 order shall be retained in the office of counsel until required by
6 the court to be filed in the case.

7 6. Counsel for the respective parties shall be responsible for
8 informing witnesses, as necessary, of the contents of the protective
9 order.

10 7. When a case is filed in which a party intends to seek a
11 protective order removing material from the public record, the
12 plaintiff(s) and defendant(s) shall be initially designated on the
13 petition under pseudonym such as "John or Jane Doe", or "Roe", and
14 the petition shall clearly indicate that the party designations are
15 fictitious. The party seeking confidentiality or other order
16 removing the case, in whole or in part, from the public record,
17 shall immediately present application to the court, seeking
18 instructions for the conduct of the case, including confidentiality
19 of the records.

20 D. SEQUENCE AND TIMING OF DISCOVERY. Unless the parties
21 stipulate or the court orders otherwise for the convenience of
22 parties and witnesses and in the interests of justice, methods of
23 discovery may be used in any sequence. The fact that a party is
24

1 conducting discovery, whether by deposition or otherwise, shall not
2 operate to delay discovery by any other party.

3 E. SUPPLEMENTATION OF RESPONSES. A party who has responded to
4 a request for discovery with a response that was complete when it
5 was made is under no duty to supplement the response to include
6 information thereafter acquired, except as follows:

7 1. A party is under a duty seasonably to supplement the
8 response with respect to any question directly addressed to:

9 a. the identity and location of persons having knowledge
10 of discoverable matters, and

11 b. the identity of each person expected to be called as
12 an expert witness at trial, the subject matter on
13 which the person is expected to testify, and the
14 substance of the testimony of the person;

15 2. A party is under a duty seasonably to amend a prior response
16 to an interrogatory, request for production, or request for
17 admission if the party obtains information upon the basis of which:

18 a. (1) the party knows that the response was incorrect
19 in some material respect when made, or

20 (2) the party knows that the response, which was
21 correct when made, is no longer true in some
22 material respect, and
23
24

1 b. the additional or corrective information has not
2 otherwise been made known to the other parties during
3 the discovery process or in writing; and

4 3. A duty to supplement responses may be imposed by order of
5 the court, agreement of the parties, or at any time prior to trial
6 through new requests for supplementation of prior responses.

7 F. DISCOVERY CONFERENCE. At any time after commencement of an
8 action, the court may direct the attorneys for the parties to appear
9 for a conference on the subject of discovery. The court shall do so
10 upon motion by the attorney for any party if the motion includes:

11 1. A statement of the issues as they then appear;

12 2. A proposed plan and schedule of discovery;

13 3. Any limitations proposed to be placed on discovery;

14 4. Any other proposed orders with respect to discovery; and

15 5. A statement showing that the attorney making the motion has
16 made a reasonable effort to reach agreement with opposing attorneys
17 on the matters set forth in the motion.

18 Each party and his attorney are under a duty to participate in
19 good faith in the framing of a discovery plan if a plan is proposed
20 by the attorney for any party. Notice of the motion shall be served
21 on all parties. Objections or additions to matters set forth in the
22 motion shall be served not later than ten (10) days after service of
23 the motion.
24

1 Following the discovery conference, the court shall enter an
2 order tentatively identifying the issues for discovery purposes,
3 establishing a plan and schedule for discovery, setting limitations
4 on discovery, if any; and determining such other matters, including
5 the allocation of expenses, as are necessary for the proper
6 management of discovery in the action. In preparing the plan for
7 discovery the court shall protect the parties from excessive or
8 abusive use of discovery. An order shall be altered or amended
9 whenever justice so requires.

10 Subject to the right of a party who properly moves for a
11 discovery conference to prompt convening of the conference, the
12 court may combine the discovery conference with a pretrial
13 conference.

14 G. SIGNING OF DISCOVERY REQUESTS, RESPONSES AND OBJECTIONS.

15 Every request for discovery, response or objection thereto made by a
16 party represented by an attorney shall be signed by at least one of
17 the party's attorneys of record in the party's individual name whose
18 address shall be stated. A party who is not represented by an
19 attorney shall sign the request, response or objection and state the
20 party's address. The signature of the attorney or party constitutes
21 a certification that the party has read the request, response or
22 objection, and that it is:

23 1. To the best of the party's knowledge, information and belief
24 formed after a reasonable inquiry consistent with the Oklahoma

1 Discovery Code and warranted by existing law or a good faith
2 argument for the extension, modification or reversal of existing
3 law;

4 2. Interposed in good faith and not primarily to cause delay or
5 for any other improper purpose; and

6 3. Not unreasonable or unduly burdensome or expensive, given
7 the nature and complexity of the case, the discovery already had in
8 the case, the amount in controversy, and other values at stake in
9 the litigation. If a request, response or objection is not signed,
10 it shall be deemed ineffective.

11 If a certification is made in violation of the provisions of
12 this subsection, the court, upon motion or upon its own initiative,
13 shall impose upon the person who made the certification, the party
14 on whose behalf the request, response or objection is made, or both,
15 an appropriate sanction, which may include an order to pay to the
16 amount of the reasonable expenses occasioned thereby, including a
17 reasonable attorney fee.

18 SECTION 4. NEW LAW A new section of law to be codified
19 in the Oklahoma Statutes as Section 3226.2 of Title 12, unless there
20 is created a duplication in numbering, reads as follows:

21 As used in the Oklahoma Discovery Code:

22 1. "Commercial litigation funder" means any person or entity,
23 other than an attorney permitted to charge a contingent fee
24 representing a party, that enters into a contract establishing a

1 right to receive compensation that is contingent on and sourced from
2 any proceeds of the civil action by settlement, judgment, or
3 otherwise. Commercial litigation funder shall not include a
4 consumer litigation funder as defined in Section 3-801 of Title 14A
5 of the Oklahoma Statutes;

6 2. "Commercial litigation funding agreement" means an agreement
7 under which the commercial litigation funder is granted a right to
8 receive compensation contingent on and sourced from any proceeds of
9 a civil action by settlement, judgment, or otherwise. A commercial
10 litigation funding agreement shall not include:

11 a. funding provided by an attorney to a client as
12 authorized by the Oklahoma Rules of Professional
13 Conduct, Appendix 3-A of Chapter 1 of Title 5 of the
14 Oklahoma Statutes, unless such funds are encumbered
15 pursuant to a commercial litigation funding agreement,
16 or

17 b. a consumer litigation funding agreement as defined in
18 Section 3-801 of Title 14A of the Oklahoma Statutes;

19 3. "Entity controlled by a foreign adversary" means, with
20 respect to a person, whether a human being or bodies politic or
21 corporate, that such person is:

22 a. a foreign person that is a national of, is
23 headquartered in, has its principal place of business
24

1 in, or is organized under the law of a foreign
2 adversary country,

3 b. a body corporate with respect to which a foreign
4 person or combination of foreign persons described in
5 subparagraph a of this paragraph directly or
6 indirectly owns at least 20 percent (20%) of such
7 body, or

8 c. a person subject to the direction or control of a
9 foreign person or entity described in subparagraph a
10 or b of this paragraph; and

11 4. "Foreign adversary country" means a country identified in 10
12 U.S.C., Section 4872(d) (2).

13 SECTION 5. This act shall become effective November 1, 2025.

14 Passed the Senate the 24th day of March, 2025.

15
16 _____
17 Presiding Officer of the Senate

18 Passed the House of Representatives the ____ day of _____,
19 2025.

20
21 _____
22 Presiding Officer of the House
23 of Representatives
24